RESIDENTIAL RENTAL AGREEMENT

This Residential Rental Agreement ("Agreement") is made and executed on this ___ day of _____, ***20***, at _____, India.

BETWEEN

Mr. Ravi Kumar, residing at _____, hereinafter referred to as the **"Landlord"**, which expression shall, unless repugnant to the context, include his legal heirs, representatives, successors, and permitted assigns;

AND

Ms. Anita Rao, residing at _____, hereinafter referred to as the **"Tenant"**, which expression shall, unless repugnant to the context, include her legal representatives and permitted successors.

The Landlord and the Tenant shall collectively be referred to as the "Parties."

RECITALS

A. The Landlord represents that he is the lawful owner of, or is otherwise legally authorized to rent out, the residential premises situated at **Flat No. 12, Lake View Apartments**, _____ (hereinafter referred to as the "Premises").

B. The Tenant desires to occupy the Premises for residential purposes, and the Landlord has agreed to let out the Premises to the Tenant subject to the terms and conditions set forth in this Agreement.

C. The Parties wish to record their respective rights, responsibilities, and obligations in writing to avoid misunderstandings during the tenancy.

NOW, THEREFORE, the Parties agree as follows:

1. RENT AND PAYMENT TERMS

1.1. The Tenant shall pay the Landlord a monthly rent of **₹18,000 (Rupees Eighteen Thousand Only)** for the use and occupation of the Premises.

1.2. The monthly rent shall be paid on or before the **5th day of each calendar month**, through bank transfer, UPI, or another mutually agreed payment method.

1.3. The Landlord shall provide a written or electronic acknowledgment of rent received upon request by the Tenant. The Tenant shall retain proof of all rent payments.

1.4. The monthly rent shall be payable from the commencement date of the tenancy, namely //20___. Any rent payable for a partial month shall be calculated on a proportionate basis unless otherwise agreed in writing.

1.5. The rent shall be exclusive of electricity, water consumption charges, internet charges, piped gas charges, and other usage-based utilities, unless expressly agreed otherwise in writing.

1.6. The Landlord shall not demand additional rent during the agreed rental period except as expressly permitted by this Agreement or mutually agreed to in writing by both Parties.

2. SECURITY DEPOSIT

2.1. The Tenant has paid the Landlord a refundable security deposit of **₹54,000 (Rupees Fifty-Four Thousand Only)**, equivalent to three months of the initial monthly rent.

2.2. The security deposit shall remain interest-free unless otherwise agreed in writing or required by applicable law.

2.3. The security deposit shall serve as security for the Tenant's obligations under this Agreement, including unpaid rent, unpaid utility charges payable by the Tenant, and reasonable costs of repairing damage beyond normal wear and tear.

2.4. The Landlord shall not deduct amounts for ordinary deterioration arising from normal residential use, including reasonable fading of paint, minor surface wear, or ageing of fixtures that is not attributable to the Tenant's negligence or misuse.

2.5. Any deduction from the security deposit shall be reasonable, supported by appropriate bills, receipts, photographs, or a written explanation, wherever applicable, and communicated to the Tenant.

2.6. The security deposit shall not automatically be treated as payment of the final month's rent. Any adjustment against outstanding rent shall require the Landlord's written agreement or be otherwise permitted by applicable law.

2.7. Upon termination of the tenancy and peaceful handover of the Premises, the Landlord shall return the balance security deposit, after lawful deductions, within **30 days**, or within any other period required by applicable law.

2.8. If any portion of the security deposit is withheld, the Landlord shall provide the Tenant with an itemized statement explaining the amount and reason for each deduction.

3. LOCK-IN PERIOD

3.1. The Parties agree to a lock-in period of **six (6) months** commencing from the date of commencement of the tenancy.

3.2. During the lock-in period, the Tenant shall not ordinarily terminate the Agreement for convenience. Any early termination during this period shall require mutual written agreement or be permitted where applicable law or the circumstances legally justify termination.

3.3. If the Tenant vacates the Premises during the lock-in period without an agreed or legally recognized ground for early termination, any claim for rent or other compensation shall be subject to the express terms of this Agreement, applicable law, and the principles governing reasonable compensation and mitigation of loss.

3.4. The Landlord shall not unreasonably refuse a request for early termination where circumstances warrant consideration. Any agreed early termination terms shall be recorded in writing.

3.5. The lock-in period shall not prevent either Party from exercising rights or remedies available under applicable law in the event of a material breach by the other Party.

4. TERMINATION BY THE TENANT

4.1. After completion of the six-month lock-in period, the Tenant may terminate this Agreement by providing **two (2) months' prior written notice** to the Landlord.

4.2. The notice shall be delivered by hand against acknowledgment, registered post, recognized courier, or email or electronic communication acknowledged by the receiving Party.

4.3. During the notice period, the Tenant shall continue to pay rent and applicable charges until the tenancy ends and possession is handed over, unless the Parties agree otherwise in writing.

4.4. The Tenant shall vacate the Premises on or before the agreed termination date, remove personal belongings, return all keys and access devices, and hand over vacant possession in reasonably clean condition, subject to normal wear and tear.

4.5. The Tenant may request an earlier release from the notice period. Such release shall take effect only upon the Landlord's written consent or as otherwise required by applicable law.

4.6. The Tenant shall be entitled to receive the refundable security deposit in accordance with Clause 2, after adjustment of lawful and properly documented deductions.

5. TERMINATION BY THE LANDLORD

5.1. The Landlord may terminate this Agreement only on a lawful ground and in accordance with the notice requirements, procedures, and protections applicable under the laws governing the Premises.

5.2. Where legally permissible, grounds for termination may include:

a. Material failure by the Tenant to pay rent despite receiving any notice or opportunity to remedy the default required by law.

b. Substantial damage to the Premises caused by the Tenant through wilful misconduct or negligence, beyond ordinary wear and tear.

c. Unauthorized subletting or transfer of occupancy where prohibited by this Agreement and applicable law.

d. Use of the Premises for unlawful activities or a material purpose inconsistent with the agreed residential use.

e. A material breach of this Agreement that remains unremedied after any legally required notice and reasonable opportunity to remedy the breach.

5.3. Except where a different procedure is legally authorized, the Landlord shall provide written notice specifying the grounds for termination and the date on which the tenancy is proposed to end.

5.4. The Landlord shall not terminate the tenancy solely on arbitrary, discriminatory, retaliatory, or otherwise unlawful grounds.

5.5. The Landlord shall not forcibly evict the Tenant, change the locks, remove the Tenant's belongings, or interrupt essential utilities to compel vacation of the Premises. Any recovery of possession shall follow the procedure prescribed by applicable law.

5.6. Upon lawful termination, the Tenant shall vacate and hand over possession in accordance with the applicable notice and legal requirements.

6. MAINTENANCE AND COMMON AREA CHARGES

6.1. The Tenant shall pay routine monthly maintenance charges only to the extent expressly agreed by the Parties. The initial allocation of maintenance charges shall be recorded below:

Monthly maintenance charge: ₹_____

Payable by: Landlord / Tenant / As mutually agreed in writing.

6.2. Any change in maintenance charges shall be supported by the relevant apartment association, housing society, or service provider's demand or other reasonable documentation.

6.3. The Landlord shall not unilaterally impose arbitrary or unrelated charges on the Tenant. Any alteration in the Tenant's agreed payment obligations shall be communicated in writing and shall be subject to this Agreement and applicable law.

6.4. Charges relating to ownership, property tax, structural maintenance, major capital expenditure, and other owner-specific liabilities shall be borne by the Landlord unless the Parties expressly agree otherwise in writing and such allocation is legally permissible.

6.5. The Tenant shall keep the Premises reasonably clean and shall use plumbing, electrical fittings, appliances, and other facilities with reasonable care.

6.6. The Tenant shall promptly inform the Landlord of any material defect, water leakage, electrical fault, structural damage, or other condition requiring repair.

6.7. The Tenant shall not be responsible for maintenance costs arising from ordinary wear and tear, structural defects, ageing infrastructure, or circumstances not caused by the Tenant's negligence or misuse.

7. LATE PAYMENT OF RENT

7.1. Rent shall be paid on or before the 5th day of each month, as provided in Clause 1.

7.2. If rent is not received by the due date, the Landlord shall notify the Tenant in writing of the outstanding amount and provide a reasonable opportunity to make payment.

7.3. Any late-payment fee or interest shall apply only if expressly agreed in writing, clearly specified in this Agreement or a written addendum, and permitted by applicable law.

7.4. The amount of any agreed late-payment charge shall be specified below:

Late-payment charge or interest: _____

Applicable grace period, if any: _____

7.5. No arbitrary, excessive, or undisclosed penalty shall be imposed on the Tenant.

7.6. Acceptance of delayed rent by the Landlord shall not automatically waive any rights arising from a continuing breach, unless such waiver is expressly agreed or follows under applicable law.

7.7. Repeated failure to pay rent may constitute grounds for legal action or termination where the relevant statutory and contractual requirements are satisfied.

8. SUBLETTING AND OCCUPANCY

8.1. The Tenant shall use the Premises primarily for residential purposes and shall not sublet, assign, license, or transfer possession of all or any part of the Premises to another person without the Landlord's prior written consent, subject to applicable law.

8.2. The Tenant shall not use the Premises for unlawful commercial activities, hazardous operations, or any purpose that materially interferes with other residents' reasonable enjoyment of the property.

8.3. The Tenant may receive ordinary social visitors, family members, and guests, provided their presence does not violate applicable law, building rules, or the legitimate rights of other occupants.

8.4. Any long-term additional occupancy that materially changes the agreed residential arrangement shall be communicated to the Landlord and handled in accordance with applicable law and any reasonable, lawful building requirements.

8.5. The Tenant shall comply with applicable apartment association rules concerning common areas, waste disposal, parking, noise, security, and the safe use of shared facilities.

8.6. The Landlord shall not unreasonably withhold consent for a proposed arrangement where consent is required and the request is consistent with the Agreement and applicable law.

9. REPAIRS AND DAMAGE

9.1. The Tenant shall be responsible for minor repairs costing up to **₹1,000 per individual repair incident**, provided the repair is attributable to the Tenant's negligence, misuse, or ordinary minor maintenance obligations expressly allocated to the Tenant.

9.2. The Tenant shall not automatically be liable for every repair costing less than ₹1,000. The cause of the damage and the allocation of responsibility under this Agreement shall be considered.

9.3. The Landlord shall bear the cost of major repairs, structural repairs, concealed plumbing defects, major electrical faults, roof or wall leakage caused by structural defects, and repairs arising from ordinary ageing or deterioration, except to the extent caused by the Tenant's negligence or misuse.

9.4. The Tenant shall promptly notify the Landlord of any repair requirement that may affect the safety, structural integrity, or habitability of the Premises.

9.5. Except in an emergency or where applicable law permits otherwise, the Tenant shall obtain the Landlord's approval before commissioning repairs for which the Landlord is responsible.

9.6. In an emergency involving an immediate risk to life, safety, or significant property damage, the Tenant may take reasonable steps to prevent further harm and shall inform the Landlord as soon as practicable.

9.7. Reimbursement for emergency repairs shall be considered on the basis of necessity, reasonableness, supporting receipts, prior communication where practicable, and applicable law.

9.8. The Parties shall document the condition of the Premises, including existing defects, fixtures, fittings, and appliances, at the time of handover. Such documentation may include photographs signed or acknowledged by both Parties.

10. USE, ACCESS, AND GENERAL OBLIGATIONS

10.1. The Tenant shall use the Premises solely for lawful residential purposes and shall take reasonable care to prevent damage to the property.

10.2. The Tenant shall not make structural alterations, carry out major installations, or permanently modify fixtures without the Landlord's prior written consent and any legally required approvals.

10.3. The Landlord or an authorized representative may enter the Premises for inspection, maintenance, repairs, or showing the Premises to prospective tenants or purchasers, subject to reasonable prior notice and the Tenant's privacy rights.

10.4. Except in emergencies or where applicable law permits otherwise, the Landlord shall provide at least **24 hours' prior notice** and arrange access at a mutually reasonable time.

10.5. Neither Party shall interfere unlawfully with the other Party's rights under this Agreement. Both Parties shall act in good faith and communicate material concerns promptly.

10.6. The Tenant shall be responsible for the conduct of household members and visitors to the extent provided by applicable law and shall take reasonable steps to avoid excessive noise, nuisance, or damage to common areas.

10.7. The Landlord shall maintain the Premises in a condition fit for the agreed residential use, subject to the Tenant's responsibilities under this Agreement and applicable law.

10.8. The Landlord shall respect the Tenant's lawful possession and privacy and shall not enter the Premises arbitrarily or use access rights to harass the Tenant.

10.9. Neither Party shall be relieved of a legal obligation merely because the other Party has not immediately objected to a breach.

11. RENT INCREASE

11.1. The initial monthly rent shall be ₹18,000 (Rupees Eighteen Thousand Only).

11.2. The Parties agree that the monthly rent shall increase by **5% at the end of every eleven (11) months**, subject to applicable law and the terms of any required renewal or extension.

11.3. Based on the initial rent, the revised monthly rent after the first eleven-month period shall be:

₹18,000 × 1.05 = **₹18,900 (Rupees Eighteen Thousand Nine Hundred Only).**

11.4. Any subsequent increase shall be calculated on the rent payable immediately before the applicable increase.

11.5. The Landlord shall provide the Tenant with written notice of the revised rent and its effective date sufficiently in advance for the Tenant to plan payment arrangements.

11.6. A rent increase shall not override any mandatory statutory restriction, rent-control provision, or other applicable legal requirement. Where a renewal, fresh agreement, or mutual written consent is legally required, the increase shall be implemented in accordance with that requirement.

12. UTILITIES AND OTHER CHARGES

12.1. The Tenant shall pay charges for electricity, water consumption, cooking gas, internet, and other utilities used by the Tenant, according to actual bills, meter readings, or the applicable service provider's billing method.

12.2. The Landlord shall provide access to available utility billing details reasonably necessary for the Tenant to verify charges payable by the Tenant.

12.3. Any outstanding utility charges attributable to the period before the commencement of the tenancy shall be borne by the Landlord unless otherwise agreed in writing.

12.4. The Tenant shall not tamper with utility meters, bypass safety devices, or undertake unauthorized connections.

12.5. The Parties shall record relevant opening meter readings, where applicable, at the time of handover.

13. HANDOVER AND CONDITION OF THE PREMISES

13.1. The Landlord shall hand over possession of the Premises on //20___, together with the keys, access cards, and agreed fixtures and fittings.

13.2. The Parties shall prepare a written inventory of furniture, appliances, fittings, and other items supplied with the Premises, if any.

13.3. The Tenant acknowledges receipt of the Premises subject to any defects or deficiencies recorded in the handover inventory or communicated in writing.

13.4. At the end of the tenancy, the Tenant shall return the Premises in reasonably clean condition, allowing for normal wear and tear and excluding damage for which the Tenant is not legally responsible.

13.5. The Parties shall, where practicable, conduct a joint inspection before handover and record any outstanding damage, repair requirements, unpaid charges, and the status of the security deposit.

14. NOTICES AND COMMUNICATION

14.1. Any formal notice under this Agreement shall be in writing and delivered to the addresses or electronic contact details specified below, or to updated contact details communicated in writing.

Landlord’s address: _____

Landlord’s email/phone: _____

Tenant’s address: _____

Tenant’s email/phone: _____

14.2. Notices shall be deemed received in accordance with the delivery method used and applicable law.

14.3. Each Party shall promptly notify the other of any change in contact information.

14.4. Informal messages may be used for routine communication, but any notice required by law or this Agreement shall satisfy the applicable formal requirements.

15. DISPUTE RESOLUTION AND GOVERNING LAW

15.1. The Parties shall first attempt to resolve disputes arising out of this Agreement through good-faith discussion and written communication.

15.2. If the dispute cannot be resolved amicably, either Party may pursue remedies before the competent court, authority, or tribunal having jurisdiction under applicable law.

15.3. This Agreement shall be governed by the laws of India and the applicable state and local laws governing the Premises.

15.4. Nothing in this Agreement shall prevent either Party from seeking urgent legal relief or exercising a statutory right.

16. GENERAL PROVISIONS

16.1. This Agreement records the understanding between the Parties regarding the tenancy and supersedes prior oral discussions concerning the same subject, to the extent legally permissible.

16.2. Any amendment, waiver, or additional condition shall be recorded in writing and signed or otherwise validly accepted by both Parties.

16.3. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue to operate to the extent permitted by law.

16.4. Neither Party may transfer rights or obligations under this Agreement except as permitted by this Agreement and applicable law.

16.5. The headings are included for convenience and shall not affect the interpretation of the clauses.

16.6. The Parties confirm that they have read and understood this Agreement, have had an opportunity to seek independent advice, and are signing it voluntarily.

17. EXECUTION AND SIGNATURES

IN WITNESS WHEREOF, the Parties have signed this Residential Rental Agreement on the date and at the place stated above.

LANDLORD

Name: Mr. Ravi Kumar

Signature: _____

Date: //20___

TENANT

Name: Ms. Anita Rao

Signature: _____

Date: //20___

WITNESS 1

Name: _____

Address: _____

Signature: _____

WITNESS 2

Name: _____

Address: _____

Signature: _____

SCHEDULE A: PROPERTY DETAILS

Full address of Premises: _____

Flat number: 12

Apartment/building name: Lake View Apartments

City and State: _____

Commencement date: //20___

Initial monthly rent: ₹18,000

Refundable security deposit: ₹54,000

Lock-in period: Six (6) months

Tenant’s notice period after lock-in: Two (2) months

Agreed maintenance charges: ₹_____

Parking allocation, if any: _____

Fixtures and appliances supplied: _____

Opening utility meter readings: _____

SCHEDULE B: INVENTORY AND HANDOVER RECORD

The Parties shall record the condition of the Premises and any items supplied at handover.

1. Keys and access cards: _____
2. Electrical fittings and appliances: _____
3. Plumbing and bathroom fittings: _____
4. Doors, windows, and locks: _____
5. Walls, flooring, and paint condition: _____
6. Furniture and other supplied items: _____
7. Existing damage or defects: _____
8. Photographs attached or exchanged: Yes / No

Landlord’s acknowledgment: _____

Tenant’s acknowledgment: _____

Date of handover: //20___